AGREEMENT FOR SALE FORENSIC AUDIT

Detailed Clause-by-Clause Review, Amenity Verification, Maintenance Audit & Catch Analysis

Project: Kaleidoscope R5 Misty Greens Phase 3B | **Subject:** Plot R5-180 (179.54 Sq.M.)

MAHARERA: P52100080947

Date of Audit: October 2026
Total Agreement Pages: 75 Pages
Deviation Document: 22 Pages

🔍 Document Provenance & Forensic Verification

This audit conducts a thorough forensic legal examination of the 75-page **Agreement to Sell** located on your Desktop at `C:\Users\hp\Desktop\misty green\agreement for sale.pdf` and cross-compares it with the official MahaRERA registered copy (`06_Model_Agreement_for_Sale_Full_75_Pages.pdf`) and the developer's 22-page statutory **Deviation Report** (`Deviation_AGS.pdf`).

File Hash Comparison: 100% IDENTICAL (SHA-256 matches official MahaRERA filing).

Legal Status: Standard Developer Draft containing extensive unilateral modifications over MahaRERA Model Form B.

Overall Risk Rating: MODERATE-TO-HIGH RISK without protective addendum.

1. Executive Summary & Key Findings

CRITICAL ATTENTION REQUIRED

AUDIT DOMAIN	CONTRACTUAL FINDING IN AGREEMENT TO SELL	RISK LEVEL & STATUS
1. Active Lender Mortgage	Clause 7.1 & 22.2 explicitly disclose an existing mortgage dated 23.07.2021 (Reg No. 10530/2021) in favour of **Vistra ITCL (India) Ltd.** The promoter will only provide NOC if "specifically requested by purchaser". Buyer forced to agree to lender takeover rights.	HIGH RISK (CATCH #1)
2. Amenities Delivery Date	Second Schedule (Pages 70–72) pegs completion of ALL common amenities to **30/01/2030** (over 4 years away). All amenity dimensions/sizes are marked as **"NA" (Not Disclosed)**.	HIGH RISK (CATCH #2)
3. Clubhouse & Facilities	Annexure "D" classifies Clubhouse, Gym, and Pool as **"Optional Facilities (PAID)"**. Plot buyers do NOT get free access; subject to separate membership and operational fees.	COMMERCIAL CATCH
4. Maintenance & Escalation	Two-tier maintenance: Society + Township Management Agency (TMA). Clause 12.8 gives TMA **unilateral power to hike maintenance** without buyer consent. Clause 12.9 allows service disconnection.	FINANCIAL CATCH
5. Road Toll & Service Monopoly	Clause 12.12 empowers Promoter/TMA to **impose and collect toll/entry fees** for township roads. Clause 13.6 forces a **monopoly on Internet/Cable TV** exclusively through TMA vendors.	UNREASONABLE
6. Resale / Transfer Lock-In	Clause 16.1 levies a **₹ 1,00,000/- transfer NOC charge** during construction AND mandates that the buyer must pay **100% of entire consideration** before selling.	RESTRICTIVE CATCH

AUDIT DOMAIN	CONTRACTUAL FINDING IN AGREEMENT TO SELL	RISK LEVEL & STATUS
7. Termination & 6-Month Refund	Clause 21.1 allows developer to hold refunded money for **up to 6 months** if buyer cancels, with standard deduction of **₹ 1,00,000/- liquidated damages** + taxes + interest.	ONE-SIDED
8. Payment Milestones (Annexure K)	**79% of consideration** is demanded upon mere *commencement* of road and utility works rather than completion.	FRONT-LOADED
9. Common Land Conveyance	Conveyance of internal roads, gardens, and amenities is delayed until completion of the **entire 47-hectare (4,77,039 sq.m.) township** (Clause 6.3 & 10.1).	DELAYED CONVEYANCE
10. Global FSI & Third-Party Easements	Clause 1.4 & 8.1 retain all global FSI, TDR, and floating potential for the promoter. Clause 8.8 & 10.1.3 give promoter right to open township roads to third-party developers.	DEVELOPER BENEFIT

2. Detailed Amenities Audit & Delivery Commitments

DELIVERY DATE: 30-JAN-2030

In the Second Schedule of the Agreement (Pages 70–73), the promoter discloses the schedule of common areas, facilities, and layout amenities. A forensic analysis reveals two severe statutory discrepancies:

AMENITY / FACILITY	GOVERNING CLAUSE	PROMISED COMPLETION DATE	COMMITTED SIZE / DIMENSIONS	NATURE & CLASSIFICATION
Senior Citizen Area	Second Schedule (A-I & C-I)	**30/01/2030**	**NA (Not Disclosed)**	Shared with Phase 3A & 3B
Children's Play Area	Second Schedule (A-I & C-II)	**30/01/2030**	**NA (Not Disclosed)**	Shared with Phase 3A & 3B
Recreation Center	Second Schedule (A-II & C-III)	**30/01/2030**	**NA (Not Disclosed)**	Shared with Phase 3A & 3B
Open Multipurpose Court	Second Schedule (A-III & C-IV)	**30/01/2030**	**NA (Not Disclosed)**	Shared with Phase 3A & 3B
Tennis Court	Second Schedule (A-IV & C-V)	**30/01/2030**	**NA (Not Disclosed)**	Shared with Phase 3A & 3B
Landscape Garden Area	Second Schedule (A-VI & C-VII)	**30/01/2030**	**NA (Not Disclosed)**	Shared with Phase 3A & 3B
STP & LT Substation Room	Second Schedule (A-V & C-VI)	**30/01/2030**	**NA (Not Disclosed)**	Township Utility Infrastructure
Clubhouse, Pool & Gym	Annexure "D" & Clause 12.10	Not Specified in Schedule	Not Disclosed	**OPTIONAL (PAID AMENITY)**
School, Hospital & Retail	Clause 12.11	Independent Commercial	Not Part of Common Area	Run by 3rd-Party Commercial Operators

⚠️ Forensic Insight: The Amenity "Blank Dimension" & 2030 Horizon Catch

1. **Delayed Availability:** Although the developer promises plot possession earlier, the contractual date for handing over amenities is **30th January 2030**. If you construct your villa in 2026–2027, you may be living amidst incomplete layout amenities for over 3 years without legal recourse.
2. **Absence of Area Specifications:** Marking dimensions as "NA" violates the spirit of MahaRERA disclosure rules. Without specified sq.ft., the developer could legally deliver a 200 sq.ft. token play area or court and still claim contractual fulfillment.
3. **The Paid Clubhouse Trap:** Clause 12.10 and Annexure "D" explicitly label the Clubhouse as an "Optional Facility". Purchasing a plot does *not* grant automatic free membership.

3. Maintenance Architecture & Long-Term Obligations

CLAUSE 9.3 & CLAUSE 12

The Agreement establishes a rigid, developer-centric, two-tier maintenance regime governed by the promoter and a private entity called the **Township Management Agency (TMA)**:

Tier 1: Sector Co-operative Society Maintenance

• **Applicability:** Covers internal Phase 3B sector amenities, sector lighting, internal street cleaning, and security.
• **Developer Quote:** ₹ 1.00 per sq.ft. per month (payable 1 year in advance).
• **Plot R5-180 Annual Outlay:** 1,932.55 sq.ft. × ₹ 1.00 × 12 = **₹ 23,191 / year**.
• **Clause 9.4.3 Catch:** Plot buyers are *prohibited* from forming a society on their own. Only the promoter can form the society.

Tier 2: Township Management Agency (TMA) Charges

• **Applicability:** Overall 47-hectare township spine roads, main security gate, bulk water supply, and streetlights.
• **Developer Quote:** ₹ 2.00 per sq.ft. per month (payable 2 years in advance).
• **Plot R5-180 2-Year Outlay:** 1,932.55 sq.ft. × ₹ 2.00 × 24 = **₹ 92,762** (₹ 46,381 / year).
• **Combined Annual Maintenance: ₹ 69,572 / year (~₹ 5,800/month)**.

MAINTENANCE CLAUSE	CONTRACTUAL PROVISION	INVESTOR IMPACT & CATCH
Clause 12.8: Unilateral Escalation	*"The said Society as well as the said TMA shall be entitled to increase the maintenance charges at their discretion..."*	**No Cap on Escalation:** TMA can double maintenance fees arbitrarily. The buyer has zero voting rights or veto mechanism in TMA.
Clause 12.9: Utility Disconnection	*"In case of default of payment of maintenance on part of the said Society to the TMA, the TMA shall be entitled to disconnect supply of water, drainage, electricity..."*	**Collective Punishment:** If other plot owners default and the society underpays TMA, TMA can shut off essential water and sewage to the whole sector!
Clause 12.12: Internal Road Tolls	*"The Owner/Promoter and/ or TMA shall be entitled to impose and collect toll/entry fee..."*	**Extremely Unusual:** Promoter reserves right to set up toll barriers inside the township and charge fees from visitors or residents.
Clause 13.6: Internet & Cable Monopoly	*"The Purchaser shall not be entitled to avail services from providers other than those made available by the TMA..."*	**Anti-Competitive:** You cannot choose JioFiber, Airtel, or Tata Play unless approved by TMA.
Clause 20: Capital Sinking Fund	Mandates non-refundable contributions to Sinking Fund, Infrastructure Fund, and Legal Expenses (₹ 7,000/- under Clause 38).	Capital contributions are collected upfront but controlled by promoter-appointed management until apex body formation.

4. The 10 Major "Catches" & Red Flags (Expert Review)

FORENSIC LEGAL SCRUTINY

CATCH #1: Active Mortgage in Favor of Vistra ITCL (India) Ltd.

Clause 7.1 & Clause 22.2

Verbatim Clause Extract:

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"7.1 ...the said project land is free from encumbrances except the Mortgage deed dated 23.07.2021 bearing no. 10530/2021, in favour of Vistra ITCL (India) Ltd... Hence the Owner/Promoter if specifically required by the Purchaser may obtain requisite NOC of Vistra ITCL (India) Ltd..."
"22.2 ...the encumbrances/charges of Lender of the Owner/Promoter is on the said 'Kaleidoscope R5 - Misty Greens - phase 3-B' Project Land... As required by the Lender, the Purchaser/Allottee hereby agree, confirm and express his permission to any assignment by the Owner/Promoter in favour of the Lender or any third party nominated by it or the exercise of any takeover / step in rights of the Lender..."
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The Legal Trap: While marketing materials claim the land is encumbrance-free, the agreement acknowledges an active commercial mortgage with Vistra ITCL. If the promoter defaults on its corporate debt, the lender has contractual "step-in" rights. Crucially, the promoter will only secure an NOC *if the buyer specifically demands it in writing*.

Required Remedy: Make the execution of the Agreement conditional upon the promoter furnishing an unconditional, plot-specific No Objection Certificate (NOC) and Release Letter from Vistra ITCL (India) Ltd. specifically releasing Plot R5-180 from the charge.

CATCH #2: ₹ 1,00,000/- Transfer Ransom & 100% Pre-Payment on Resale

Clause 16.1

Verbatim Clause Extract:

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"16.1 ...the Owner/Promoter on prior written request... shall issue in his favor necessary No Objection Certificate... provided, i) the Purchaser pays entire consideration amount to the Owner/Promoter before selling the said Plot, ii) the Purchaser pays to the Owner/Promoter transfer charges of Rs. 1,00,000/-..."
```

The Legal Trap: If your life circumstances change and you wish to resell or assign Plot R5-180 during the construction cycle, you cannot simply assign your rights. You must pay 100% of the plot cost upfront to the developer and hand over a non-refundable ₹ 1,00,000/- fee for a simple NOC. Under MahaRERA rulings, unreasonable transfer fees are illegal.

Required Remedy: Negotiate deletion of the ₹ 1 Lakh fee or reduce it to a nominal administrative charge (max ₹ 10,000/-) and delete the requirement to pay 100% consideration before assignment if construction is ongoing.

CATCH #3: 6-Month Delayed Refund & Liquidated Damages on Exit

Clause 21.1.2 & 21.1.3

Verbatim Clause Extract:

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"21.1.3 For whatsoever reason if the Allottee/s herein, without any default or breach on his/her/their part, desire to terminate this agreement... Promoter deducts (i) an amount of Rs. 1,00,000/- towards liquidated damages in addition to interest, (ii) stamp duty, registration, extra work, (iii) Service Tax, VAT, GST... within a period of six months..."
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The Legal Trap: If you cancel without default, the promoter gets **6 full months** to return your money without paying interest during this holding period, while simultaneously deducting ₹ 1 Lakh plus non-recoverable taxes. Under RERA Section 18, refunds must be processed within 45 to 60 days.

Required Remedy: Insist that refund timelines be aligned with MahaRERA Rule 18 (refund within 45 days) and cap administrative deductions.

CATCH #4: Front-Loaded Payment Milestones (Payment on "Start" of Works)

Annexure "K" (Payment Schedule)

Payment Milestone Schedule:

Booking Advance: **10%**	At Agreement Execution: **20%**	Completion of Fencing: **9%**
Start of Internal Road Work: **20%**	Start of Utility Work: **20%**	At Offer of Possession: **20%**

The Legal Trap: Notice the critical phrasing: 20% is triggered upon **"START of internal road work"**, and another 20% on **"START of utility work"**. By the time a contractor merely dumps gravel or digs a trench, the developer demands **79% of the total consideration**! If the developer halts work after "starting", 79% of your capital is trapped.

Required Remedy: Amend milestone triggers to **"Completion of asphalt/paved internal roads fronting the plot"** and **"Completion of electrical cabling, water, and sewage lines to plot plinth"**.

CATCH #5: Promoter Retains Global FSI, TDR & All Open Spaces

Clause 1.4, Clause 8.1, Clause 8.5

Verbatim Clause Extract:

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"1.4 'Township Global FSI' Shall mean the right to claim, utilize and consume entire Floor Space Index
(FSI/TDR)... on global basis... excluding the total FSI belonging to the said Project."
"8.5 The Overall Township Amenities, green spaces, public utility spaces, open spaces, gardens, shall
vest in the Owner/Promoter or its assigns, and it shall have right to allot, sell, transfer, convey or
otherwise deal with the same..."
```

The Legal Trap: The promoter explicitly keeps all unconsumed and future FSI/TDR generated across the 47-hectare land. Furthermore, Clause 8.5 states that township gardens and green spaces vest permanently with the promoter to "allot, sell, transfer, or convey" to third parties.

Required Remedy: Ensure that the internal sector open spaces (such as Amenity EA 3 behind Plot 180) are contractually locked as non-buildable green buffer zones that cannot be converted into high-density commercial or tower developments.

CATCH #6: Right to Grant Road Easements to External Third-Party Projects

Clause 8.8 & Clause 10.1.3

Verbatim Clause Extract:

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"8.8 ...the Owner/Promoter shall be absolutely entitled to use or permit to be used, the artery roads
and/ or the internal roads... as an access to the other lands or projects to be developed by the
Owner/Promoter or any other promoter, land owner in the vicinity..."
"10.1.3 The Owner/Promoter has specifically disclosed... that Owner/Promoter has given easement rights...
to Sarang Kale. In future also Owner/Promoter shall have rights to give such easement rights with or
without consideration to adjoining land owners..."
```

The Legal Trap: The promoter explicitly reserves the right to allow outside builders, adjoining village plot developers, and neighboring land owners to use Misty Greens' internal roads. This dilutes the "gated private community" security and increases heavy construction vehicular traffic past your plot.

Required Remedy: Seek written confirmation that internal 9-meter roads in Sector R5 will remain restricted to Misty Greens residents and not be turned into thoroughfare access for external village developments.

CATCH #7: Indefinitely Deferred Common Area Conveyance

Clause 6.2, 6.3 & Clause 10.1.2

The Legal Trap: Under Section 17 of MahaRERA, the promoter must convey common areas to the association of allottees within 3 months of receiving the Occupancy Certificate. In this Agreement, conveyance of the common roads, clubhouse, and township infrastructure is pushed back until the **entire 47-hectare township is fully developed**. Because township completion may take 10–15 years, plot owners remain dependent on the promoter/TMA indefinitely.

CATCH #8: Disconnection of Essential Utilities on Any Default

Clause 12.9

The Legal Trap: Clause 12.9 allows the private TMA to unilaterally disconnect water, sewage, and electricity connections for non-payment of maintenance. In Maharashtra, shutting off essential water and sanitary services to residential occupants has been held illegal by the High Court and RERA Appellate Tribunals, yet the promoter has codified it into this agreement.

CATCH #9: Exclusion of Marketing Collateral & Oral Promises

Clause 9.6.14 & Clause 23.1

The Legal Trap: Clause 9.6.14 states that the promoter has "*withdrawn all its advertisements*", and Clause 23.1 states that no oral commitments, sales brochures, or artistic renders have any legal validity. Any verbal assurance given by the sales team (e.g., regarding water delivery, bypass road access, or clubhouse completion) is legally null and void unless written into the agreement.

CATCH #10: Architectural Veto & Construction Timeline Pressure

Clause 9.2 & Clause 9.5

The Legal Trap: You cannot construct freely on Plot R5-180. Your villa design, external elevation, exterior paint shades, and compound wall height must be vetted and approved by the promoter's architect. The promoter can demand adherence to strict aesthetic guidelines at your expense.

5. Comparative Matrix: Developer Draft vs. MahaRERA Model Form B

STATUTORY BENCHMARK COMPARISON

CONTRACTUAL SUBJECT	MAHARERA STANDARD (MODEL FORM B)	KALEIDOSCOPE DEVELOPERS DRAFT (CURRENT)
1. Title & Mortgage Disclosure	Mandates zero encumbrances on project land, or if mortgaged, promoter must produce bank NOC prior to execution.	**DEVIATION:** Mentions active mortgage of Vistra ITCL (No. 10530/2021). Promoter will only provide NOC if "specifically requested".
2. Common Area Handover	Within 3 months of completion of the phase/building, common areas must be conveyed to the registered association.	**DEVIATION:** Common areas deferred until completion of entire 47-hectare township. Open spaces vest in promoter.
3. Amenity Delivery Schedule	All project amenities must be completed co-terminus with the handover of the respective phase. Dimensions must be stated.	**DEVIATION:** Amenities completion deferred to **30/01/2030**. All sizes/areas marked as "NA". Clubhouse made a paid facility.
4. Resale & Assignment Fees	Promoter cannot charge exorbitant transfer fees or restrict assignment if the buyer has complied with payment terms.	**DEVIATION:** Demands **₹ 1,00,000/- transfer NOC fee** and 100% full consideration before permitting assignment.
5. Refund on Cancellation	Refund within 45 days. Deduction restricted to a reasonable booking token (max 2% of transaction value).	**DEVIATION:** Promoter gets **6 full months** to refund. Deducts ₹ 1,00,000/- liquidated damages + all taxes + costs.
6. Maintenance Control	Maintenance charges handed over to democratic allottee society upon formation. Disconnection of water/power illegal.	**DEVIATION:** Controlled by promoter-appointed TMA. TMA can hike fees unilaterally, cut off water/power, and levy road tolls.
7. Future FSI / TDR	Undivided right and interest in land transferred to society; future FSI belongs to the allottees' entity.	**DEVIATION:** Promoter retains entire "Township Global FSI" and floating TDR across the 47 hectares.

6. Actionable Investor Negotiation Checklist & Protective Addendum

PRE-SIGNING REQUIREMENTS

Before signing and registering the Agreement to Sell for Plot R5-180, you should instruct your conveyancing advocate to insist upon the following **5 non-negotiable side-letter clauses / addendum modifications**:

1. Unconditional Bank NOC for Plot R5-180

Draft Requirement: "*The Promoter shall, prior to or simultaneously with registration of this Agreement, deliver to the Purchaser an unconditional No Objection Certificate (NOC) and Release Deed from Vistra ITCL (India) Ltd. certifying that Plot R5-180 is free from all mortgages, charges, and claims.*"

2. Payment Milestone Modification (Annexure K)

Draft Requirement: Change the trigger words from "*Upon start of road work*" and "*Upon start of utility work*" to **"Upon substantial completion of paved internal access road fronting Plot R5-180"** and **"Upon completion of water, power, and sewage connection lines to the plinth boundary of Plot R5-180"**.

3. Amenity Commitment & Clubhouse Membership Waiver

Draft Requirement: Insist on a side-letter confirming that: (a) basic sector amenities (roads, garden, play area, streetlights, security) will be accessible within 12 months of plot possession, and (b) basic Clubhouse access and family membership entry fees for Plot R5-180 will be included in the ₹ 1.15 Cr total package without additional capital initiation charges.

4. Resale / Transfer Fee Capped at ₹ 10,000/-

Draft Requirement: Strike down the ₹ 1,00,000/- transfer charge in Clause 16.1. Replace with a standard administrative processing charge not exceeding ₹ 10,000/-, and eliminate the clause requiring 100% full consideration payment prior to assignment.

5. Rear Buffer (Amenity EA 3) Non-Alienation Undertaking

Draft Requirement: Because Plot R5-180's premium value derives from its direct eastern rear exposure to Amenity EA 3, obtain a specific covenant that Amenity Space EA 3 shall remain a permanent green / open recreation space and will never be built upon or monetized by the promoter.

Confidential Real Estate Due Diligence Audit | Prepared for Plot R5-180, Kaleidoscope Misty Greens Phase 3B (MahaRERA: P52100080947)
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